

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
STANISLAV LUBOVNY AND MAYA LUBOVNY,

Plaintiffs,

-against-

LUKE DENESOPOLIS AND MIKE CIVIL,

Defendants.  
-----X

Filed: \_\_\_\_\_

Index No.

Plaintiff designates KINGS  
county as the place of trial.

**S U M M O N S**

The basis of venue is:  
Location of occurrence

Plaintiff's residence:  
2800 Coyle Street  
Brooklyn, NY  
COUNTY OF KINGS

**To the above named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York  
February 11, 2014

Yours, etc.,

LEAV & STEINBERG, LLP  
Attorneys for Plaintiff(s)

By: 

Daniel T. Leav

140 Broadway, 36<sup>th</sup> Floor  
New York, New York 10005  
(212) 766-5222

TO:

SGT. LUKE DENESOPOLIS, TAX ID 922235, 1 Police Plaza, New York, NY  
PO MIKE CIVIL, TAX ID 935092, 1 Police Plaza, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
STANISLAV LUBOVNY AND MAYA LUBOVNY,

Index No.

Plaintiffs,

-against-

**VERIFIED COMPLAINT**

LUKE DENESOPOLIS AND MIKE CIVIL,

Defendants  
-----X

Plaintiffs, by their attorneys, LEAV & STEINBERG, LLP, as and for their Verified Complaint against the defendants herein, respectfully set forth and allege the following, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF STANISLAV LUBOVNY**

- 1) That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Kings, City and State of New York.
- 2) That at all times hereinafter mentioned, the New York City Police Department (hereinafter "NYCPD") was and still is an agency and/or responsibility of The City of New York.
- 3) That at all times hereinafter mentioned, The City of New York, by and through its agents, servants and/or employees, employed certain personnel, including but not limited to, uniformed and civilian staff to work for its various police precincts and police units, including undercover and narcotics units.

4) That at all times hereinafter mentioned, defendant LUKE DENESOPOLIS (hereinafter "LUKE") was and still is a police officer employed by the New York City Police Department.

5) That at all times hereinafter mentioned, defendant MIKE CIVIL (hereinafter "MIKE") was and still is a police officer employed by the New York City Police Department.

6) That at all times hereinafter mentioned, The City of New York, by and through its agents, servants and/or employees, did lease and/or rent certain unmarked vehicles for use by its uniformed and undercover narcotics units.

7) That at all times hereinafter mentioned, The City of New York, did lease and/or rent a certain motor vehicle bearing New York State license/registration number ZDV15U, which vehicle was owned by SHMBA LLC, for use by its uniformed and undercover units.

8) That at all times hereinafter mentioned, defendant LUKE was in physical control and operated the aforesaid motor vehicle.

9) That at all times hereinafter mentioned, defendant LUKE operated the aforesaid motor vehicle with the knowledge, permission and consent of the owner, express or implied.

10) That at all times hereinafter mentioned, defendant LUKE operated the aforesaid motor vehicle in the course and scope of his employment with the New York City Police Department.

11) That at all times hereinafter mentioned, defendant MIKE was in physical control and operated the aforesaid motor vehicle.

12) That at all times hereinafter mentioned, defendant MIKE operated the aforesaid motor vehicle with the knowledge, permission and consent of the owner, express or implied.

13) That at all times hereinafter mentioned, defendant MIKE operated the aforesaid motor vehicle in the course and scope of his employment with The City of New York.

14) That at all times hereinafter mentioned, Coney Island Avenue at or near its intersection with Dorchester Road, in the County of Kings, City and State of New York was and still is a public roadway and/or thoroughfare used by residents of this State and others.

15) That at all times hereinafter mentioned, plaintiff STANISLAW LUBOVNY was the lawful operator of a certain motor vehicle bearing NJ State license/registration number ZDV15U.

16) That at all times hereinafter mentioned, plaintiff STANISLAW LUBOVNY was lawfully operating his aforesaid motor vehicle at the aforesaid location.

17) That at all times hereinafter mentioned, defendant LUKE was operating the aforesaid motor vehicle leased and/or rented by The City of New York at the aforesaid location.

18) That at all times hereinafter mentioned, defendant MIKE was operating the aforesaid motor vehicle leased and/or rented by The City of New York at the aforesaid location.

19) That at all times hereinafter mentioned, defendant LUKE unlawfully and improperly operated and parked the aforesaid leased and/or rented motor vehicle in the middle of the roadway of Coney Island Avenue and Dorchester Road without proper lights, sirens, signals and/or warnings.

20) That at all times hereinafter mentioned, defendant MIKE unlawfully and improperly operated and parked the aforesaid leased and/or rented motor vehicle in the middle of the roadway of Coney Island Avenue and Dorchester Road, without proper lights, sirens, signals and/or warnings.

21) That on or about the 6<sup>th</sup> day of January, 2012, at the aforesaid location, defendants did unlawfully stop, detain and arrest plaintiff STANISLAW LUBOVNY following a motor vehicle stop without just cause, warning or provocation.

22) That on or about the 6<sup>th</sup> day of January, 2012, while plaintiff STANISLAW LUBOVNY was being unlawfully and improperly arrested, questioned and detained by defendants, he was struck by a motor vehicle bearing NYS license/registration number 35828JV, which motor vehicle was owned and operated by Elias Ahammed.

23) That as a result of the foregoing, plaintiff STANISLAW LUBOVNY sustained serious, severe and permanent personal injuries.

24) That the aforesaid occurrence and resultant injuries to plaintiff were caused solely and wholly through and by reason of the carelessness, recklessness and negligence of the defendants in the operation, control, care, custody, charge, management, maintenance and supervision of the aforesaid motor vehicle; in improperly placing their aforesaid motor vehicle in the middle of the roadway without lights, sirens or other warning devices; in causing, permitting and/or allowing an improper police stop while plaintiff was in the middle of the roadway; in questioning plaintiff in the middle of the roadway; in failing to remove plaintiff and his other passengers to the side of the roadway; in placing plaintiff in a position of harm and danger; in negligently placing plaintiff in a place of danger; in improperly stopping plaintiff's vehicle without warning or provocation; in operating their vehicle in a careless, reckless and negligent manner; in unlawfully arresting and detaining plaintiff; in improperly performing a motor vehicle stop; in placing plaintiff in a position of harm and danger; in failing to utilize their lights, sirens and/or other warnings during a motor vehicle stop; in causing, permitting and/or allowing a motor vehicle to come into contact with plaintiff; in failing to look; in failing to see; in failing to

warn plaintiff of this occurrence; in failing to avoid this occurrence; in failing to equip their vehicle with properly operating equipment, including but not limited to, lights and/or sirens; in failing to have properly operating equipment; in failing to properly utilize the operating equipment of said motor vehicle; in failing to observe the traffic conditions at the location of the occurrence; in failing to use proper and good judgment; in failing to use all due care and caution in the execution of their job; in proceeding in violation of and in disregard of the safety of others; in causing, permitting and/or allowing ELIAS' motor vehicle to come into contact with plaintiff; in failing to warn plaintiff of this occurrence; in failing to stop and pull the plaintiff over to the right side of the road; in placing plaintiff in harms way; in placing plaintiff in a place of danger and peril; in failing to safeguard the street and/or roadway when effectuating a motor vehicle stop; in failing to have an adequate safety zone in place to protect claimant; in improperly questioning claimant in the middle of the roadway and in an unsafe location; in negligently placing their NYCPD vehicle in front of plaintiff's vehicle without lights and/or sirens so as to alert other motorists of their presence and in violating the applicable laws, rules, regulations and ordinances governing this situation; in falsely arresting the claimant; in unlawfully restraining the plaintiff; in failing to provide plaintiff with a safe place to stand; in failing to protect the plaintiff from injury; in failing to provide a safe and secure environment to the plaintiff in violation of their responsibilities and duties; in placing the plaintiff in a position of danger, peril and harm; in failing to ensure the plaintiff's safety; in creating a hazard, nuisance and unsafe condition for persons lawfully thereat; in failing to place any signs, barricades or other warning devices to prevent plaintiff from being struck by a motor vehicle during a traffic stop; in failing to remedy, properly remedy and/or timely remedy the aforesaid dangerous and hazardous conditions; in failing to avoid this occurrence; in unlawfully arresting and imprisoning plaintiff

without probable cause, legal or moral justification; in intentionally, knowingly, recklessly, negligently and maliciously causing the commencement of a proceeding and/or prosecution against plaintiff upon the filing of an accusatory instrument without probable cause; in charging plaintiff with vehicle and traffic law violations; in causing plaintiff undue emotional distress with utter disregard of the consequences of their actions; in failing to have properly operating equipment; in failing to properly utilize the operating equipment of said police vehicle(s); in failing to use all due care and caution in the execution of the NYCPD's job; in the false arrest and unlawful imprisonment of the plaintiff; in using excessive and unreasonable use of force; police brutality; in improperly and wrongfully confining plaintiff; in violating plaintiff's civil rights under the applicable State and Federal statutes, including, but not necessarily limited to Title 42 U.S.C. § 1983; malicious prosecution; intentional infliction of emotional distress; malicious abuse of process; defamation, libel and slander; harassment; negligence on the part of the defendants; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided and the applicable sections of the Vehicle and Traffic Law; and the defendants were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence, all without any fault or lack of care on the part of the plaintiff contributing thereto.

25) That as a result of the aforesaid occurrence, plaintiff STANISLAV LUBOVNY sustained severe and permanent personal injuries to his head, limbs, body and nervous system and has been rendered sick, sore, lame and disabled and upon information and belief, some of these injuries are permanent; he has been unable to pursue his usual duties and activities for some time; he has been confined to bed and home for some time; he has been compelled to submit himself to hospital and medical care and attention and to incur various sums of money in

an endeavor to cure or alleviate his said injuries; and, he has been compelled to suffer physical pain, mental anguish and emotional distress and will sustain a loss of the enjoyment, pleasures and pursuits of life.

26) That plaintiff STANISLAV LUBOVNY sustained a serious injury as defined in subsection (d) of Section 5102 of the Insurance Law of the State of New York and/or has sustained economic loss in excess of basic economic loss as defined in subsection (a) of Section 5102 of the Insurance Law of the State of New York.

27) That the amount of damages sought herein exceeds the jurisdictional limits of any and all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION  
ON BEHALF OF MAYA LUBOVNY**

28) Plaintiffs repeat, reiterate and reallege each and every allegation contained and set forth in the First Cause of Action with the same force and effect as if more fully set forth at length herein.

29) That at all times hereinafter mentioned, plaintiff MAYA LUBOVNY was and still is the wife of plaintiff STANISLAV LUBOVNY and they duly cohabit together.

30) That as a result of the aforesaid occurrence and injuries sustained by plaintiff STANISLAV LUBOVNY, plaintiff MAYA LUBOVNY has been deprived of the society, companionship, services and consortium of her husband and has expended various sums of money in an effort to cure and/or alleviate his said injuries.

31) That the amount of damages sought herein exceeds the jurisdictional limits of any and all lower courts which would otherwise have jurisdiction.

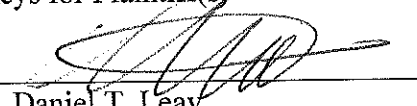


WHEREFORE, plaintiffs demand judgment against the defendant in the First and Second Causes of Action in such sums as a jury may find fair, reasonable and just, together with the costs, interests and disbursements of this action.

Yours, etc.,

LEAV & STEINBERG, LLP  
Attorneys for Plaintiff(s)

By: \_\_\_\_\_

  
Daniel T. Leav

140 Broadway, 36<sup>th</sup> floor  
New York, NY 10005  
(212) 766-5222

**VERIFICATION**

STATE OF NEW YORK     )  
                                  ) SS:  
COUNTY OF NEW YORK )

DANIEL T. LEAV, being duly sworn affirms under penalties of perjury the following:

That I am a member of the firm of LEAV & STEINBERG, L.L.P., the attorneys of record for the plaintiff(s).

That I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; that the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by your affirmant and not by plaintiff(s) because plaintiff(s) does not reside within the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiffs, information contained in the file which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York  
February 11, 2014

  
\_\_\_\_\_  
DANIEL T. LEAV

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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STANISLAV LUBOVNY AND MAYA LUBOVNY,

Plaintiffs,

-against-

LUKE DENESOPOLIS AND MIKE CIVIL,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

Yours, etc.,

LEAV & STEINBERG, LLP  
Attorneys for Plaintiff(s)  
140 Broadway  
New York, NY 10005  
(212) 766-5222